

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Wassim Abedrabbo	Team: Squad #12	CCRB Case #: 201703997	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 05/18/2017 6:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/18/2018	Precinct: 101		
Date/Time CV Reported Thu, 05/18/2017 11:29 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 05/18/2017 11:29 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Dias	04654	950320	101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brendan Hannon	03918	956718	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Dias	Abuse: Police Officer Matthew Dias threatened to arrest § 87(2)(b)	A . Exonerated

Case Summary

On May 18, 2017, § 87(2)(b) filed this complaint on behalf of § 87(2)(b)

On May 18, 2017, at 6:30 p.m., in front of § 87(2)(b) in Queens, Police Officer Matthew Dias, of the 101st Precinct, told § 87(2)(b) that she could potentially be arrested for changing the locks on her tenant § 87(2)(b) apartment (**Allegation A**).

Video footage was obtained in relation to this case; however, it does not capture the threat of arrest.

§ 87(2)(b) was issued a summons as a result of this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- Both § 87(2)(b) and § 87(2)(b) rejected to mediate this complaint.
- As of October 3, 2017, the Notice of Claim Inquiry with the NYC Comptroller's office is still pending.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 03).
- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 04).
- This is the fourth CCRB complaint filed against PO Dias, who has been a member of service for six years and has a total of 10 allegations in his CCRB history (see officer history). All of the allegations in PO Dias' CCRB history were fully investigated. One threat of arrest allegation was exonerated and a property damage allegation was substantiated, for which the board recommended charges and the NYPD has not issued a disposition.

Findings and Recommendations

Allegation A -Abuse: Police Officer Matthew Dias threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) changed the locks on the door to her tenant's apartment as a means of evicting the tenant. It is also undisputed that § 87(2)(b) told PO Dias that she changed the locks to the apartment at the time of the incident under investigation and she refused to give § 87(2)(b) a key when PO Dias instructed her to do so. Finally, it is undisputed that as a result PO Dias told § 87(2)(b) that she could potentially be arrested for changing the locks, which amounted to illegally evicting the tenant, if she did not allow the tenant into the apartment.

§ 87(2)(b) stated that when she saw § 87(2)(b) outside of her home on May 18, 2017, she told § 87(2)(b) that § 87(2)(b) § 87(2)(b) the person § 87(2)(b) rented the apartment to, moved out so she needed to leave also (Board Review 05).

During a telephone statement, § 87(2)(b) stated that on May 4, 2017, she called 9-1-1 to § 87(2)(b) in Queens to have § 87(2)(b) taken out of the apartment (Board Review 06). PO Dias was one of two officers to respond that day. When she spoke to PO Dias she informed him that § 87(2)(b) had been living in the apartment for 20 days on May 4, 2017.

PO Dias stated that when he responded to the incident location on an earlier date of May 4, 2017, § 87(2)(b) initially stated that § 87(2)(b) lived in the apartment for 30 days (Board Review 07). In the same conversation, § 87(2)(b) stated that she had been calling Administrative Child Services on § 87(2)(b) for two months because she smokes marijuana around her children. § 87(2)(b) told PO Dias that she did not know § 87(2)(b) prior to § 87(2)(b) moving into the apartment. PO Dias deduced that § 87(2)(b) was at the location for over 30 days which is why he did not escort her out of the apartment on that day. PO Dias remembered that he had the May 4, 2017, interaction with § 87(2)(b) and § 87(2)(b) on May 18, 2017.

NYC Administrative Code § 26-521(A)3 It is unlawful to evict or attempt to evict an occupant of an apartment who has occupied the apartment for thirty consecutive days or longer by changing the lock on the apartment door without supplying the occupant a key (Board Review 08).

Patrol Guide Procedure 214-12 When a uniformed member of service has probable cause to believe that a person has been unlawfully evicted from their dwelling they could effect an arrest if the violator refuses to permit the occupant to re-entry (Board Review 09).

§ 87(2)(g) [REDACTED]. Therefore, it is recommended that **Allegation A** be exonerated.

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date